U.S. Department of Transportation
Federal Transit Administration

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August 20, 2025

Blake Ethridge
Chair, Board of Trustees
Southwest Ohio Regional Transit Authority
525 Vine Street, Suite 500
Cincinnati, OH 45202

Re: Fiscal Year 2025 Triennial Review - Final Report

Dear Blake Ethridge:

Enclosed with this letter is a copy of the Federal Transit Administration (FTA) final report which documents the results of FTA's Fiscal Year (FY) 2025 Triennial Review of the Southwest Ohio Regional Transit Authority (SORTA) in Cincinnati, Ohio. Although not an audit, the Triennial Review, as required by 49 U.S.C. Chapter 53, is the FTA's assessment of SORTA's compliance with Federal requirements, determined by examining a sample of award management and program implementation practices. As such, the Triennial Review is not intended as, nor does it constitute, a comprehensive and final review of compliance with program funding requirements.

Due to the Coronavirus 2019 (COVID-19) Public Health Emergency, the review was expanded to address SORTA's compliance with the administrative relief and flexibilities FTA granted and the requirements of the COVID-19 relief funds received through the Coronavirus Aid, Relief, and Economic Security (CARES) Act, Coronavirus Response and Relief Supplemental Appropriations Act (CRRSAA) of 2021, and the American Rescue Plan (ARP) Act of 2021.

The Triennial Review focused on SORTA's compliance in 23 areas. Deficiencies were found in two areas: Procurement and Disadvantaged Business Enterprise. SORTA had no repeat deficiencies from the FY2022 Triennial Review.

Thank you for your cooperation and assistance during this Triennial Review. If you need any technical assistance or have any questions, please do not hesitate to contact Mark Calbeck, FTA General Engineer, at 312-353-4038 or by email at mark.calbeck@dot.gov.

Sincerely,

Kelley Brookins

Kelley Brookins
Regional Administrator

cc: Andy Aiello, SORTA
Mary Huller, SORTA
Mark Calbeck, FTA
Joni Roeseler, Team TFC
Philippa Drew, Team TFC
Michael Lacey, Team TFC

Enclosure

FINAL REPORT

FISCAL YEAR 2025
TRIENNIAL REVIEW

Of

Southwest Ohio Regional Transit Authority
(SORTA)
Cincinnati, OH
Recipient ID: 2020

Performed for:

U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL TRANSIT ADMINISTRATION
REGION 5

Prepared By:

TFC Consulting Inc.

Desk Review/ Scoping Meeting Date: March 10-31, 2025
Site Visit Entrance Conference Date: June 10, 2025
Site Visit Exit Conference Date: June 16, 2025
Draft Report Date: July 18, 2025
Final Report Date: August 20, 2025

Table of Contents

I. Executive Summary

This report documents the Federal Transit Administration's (FTA) Triennial Review of the Southwest Ohio Regional Transit Authority (SORTA) of Cincinnati, Ohio. The FTA wants to ensure that awards are administered in accordance with the requirements of Federal public transportation law 49 U.S.C. Chapter 53. The review was performed by TFC Consulting, Inc. (Contractor). During the site visit, the reviewers discussed the administrative and statutory requirements and reviewed recipient documents.

Due to the Coronavirus 2019 (COVID-19) Public Health Emergency, the FTA expanded the review to address SORTA's compliance with the administrative relief and flexibilities that the FTA granted, and the requirements of the COVID-19 Relief funds received through the Coronavirus Aid, Relief, and Economic Security (CARES) Act, Coronavirus Response and Relief Supplemental Appropriations Act (CRRSAA) of 2021, and the American Rescue Plan (ARP) Act of 2021. The FTA also requested the SORTA share if and/or how it suspended, deviated from, or significantly updated or altered its transit program due to the public health emergency.

1. Metric

The metrics used to evaluate whether a recipient is meeting the requirements for each of the areas reviewed are:

- Not Deficient (ND): An area is considered not deficient if, during the review, nothing came to light that would indicate the requirements within the area reviewed were not met.

- Deficient (D): An area is considered deficient if any of the requirements within the area reviewed were not met.

- Not Applicable (NA): An area can be deemed not applicable if, after an initial assessment, the recipient does not conduct activities for which the requirements of the respective area would be applicable.

2. Summary of Findings

The Fiscal Year (FY) 2025 Triennial Review focused on SORTA's compliance in 23 areas.

Deficiencies related to the COVID-19 Relief funds have been clearly identified as part of the deficiency description in the respective review area. There were no repeat deficiencies from the FY 2022 Triennial Review.

Deficiencies were found in the areas listed below.

Review Area	Finding	Deficiency Code(s)		Corrective Action(s)	Response Due Date(s)	Date Closed
		Code	Description			
1. Legal	ND					
2. Financial Management and Capacity	ND					
3. Technical Capacity – Award Management	ND					
4. Technical Capacity – Program Management and Subrecipient Oversight	NA					
5. Technical Capacity – Project Management	ND					
6. Transit Asset Management	ND					
7. Satisfactory Continuing Control	ND					
8. Maintenance	ND					
9. Procurement	D	P-11-1	Missing Clauses	SORTA must submit in OTrak: 1. Revised procurement procedures that ensure review of the FTA Master Agreement and 2 CFR Part 200 annually to confirm the inclusion of all FTA-required third-party contract clauses through use of a clause checklist or other mechanism. 2. For the next procurement, submit documentation that the required process was implemented.	11/14/2025	

Review Area	Finding	Deficiency Code(s)		Corrective Action(s)	Response Due Date(s)	Date Closed
		Code	Description			
10. Disadvantaged Business Enterprise	D	DBE5-1	DBE uniform reports contain inaccuracies and/or are missing required information	SORTA must submit in OTrak: 1. Corrected December 2022 Uniform Report 2. Implemented procedures for correctly completing Uniform Reports of DBE Awards or Commitments and Payments, including contracts that originally were targeted for local funding but then received federal funding.	11/14/2025	
11. Title VI	ND					
12. Americans with Disabilities Act (ADA) – General	ND					
13. ADA – Complementary Paratransit	ND					
14. Equal Employment Opportunity	ND					
15. School Bus	ND					
16. Charter Bus	ND					
17. Drug-Free Workplace	ND					
18. Drug and Alcohol Program	ND					
19. Section 5307 Program Requirements	ND					
20. Section 5310 Program Requirements	NA					
21. Section 5311 Program Requirements	NA					
22. Public Transportation Agency Safety Plan	ND					
23. Cybersecurity	NA					

The metrics used to evaluate whether a recipient is meeting the requirements for each of the areas reviewed are: Deficient (D)/Not Deficient (ND)/Not Applicable (NA)

II. Review Background and Process

1. Review Background

The United States Code, Chapter 53 of Title 49 (49 U.S.C. 5307(f)(2)) requires that "At least once every 3 years, the Secretary shall review and evaluate completely the performance of a recipient in carrying out the recipient's program, specifically referring to compliance with statutory and administrative requirements..." The FTA performs this Triennial Review in accordance with its procedures (published in FTA Order 9010.1B, April 5, 1993).

The Triennial Review includes a review of the recipient's compliance in 23 areas. The basic requirements for each of these areas are summarized in Section IV. The FTA contracts with experienced reviewers to lead and conduct the Triennial Reviews, in partnership with the staff of the regional office.

This report presents the findings from the Triennial Review of the recipient. The review concentrated on procedures and practices employed since the recipient's previous Triennial Review in 2022; however, coverage was extended to earlier periods as appropriate to assess the policies in place and the management of award funds. The specific documents reviewed and referenced in this report are available at the FTA regional office or the recipient's location.

2. Process

The Triennial Review includes a pre-review assessment, a desk review and scoping meeting with the FTA regional office, and a site visit to the recipient's location. The FTA expanded this review to address the recipient's compliance with the administrative relief and flexibilities that the FTA granted, and the requirements of the COVID-19 relief funds received through the CARES, CRRSAA, and ARP. The FTA also requested that the recipient share if and/or how it suspended, deviated from, or significantly updated or altered its transit program due to the public health emergency.

The FY 2025 process began with the regional office transmitting a notification of the review and a Recipient Information Request (RIR). While the recipient prepared its response to the RIR, the regional office and review team conducted a desk review and scoping meeting, respectively. Regional office staff provided electronic files as necessary to the reviewers who also accessed recipient information in the FTA electronic award management systems: Transit Award Management System (TrAMS) and Oversight Tracking System (OTrak). Following the desk review and scoping meeting, the reviewers and the recipient corresponded and exchanged information and documentation in preparation for the site visit. Prior to the site visit, the reviewer sent to the recipient an agenda package indicating the issues that would be discussed, records to be reviewed, and interviews to be conducted.

The site visit began with an entrance conference, at which the reviewers and regional staff discussed the purpose of the Triennial Review and the review process. The reviewers conducted additional interviews and reviewed documentation to evidence the recipient's compliance with

FTA requirements.

Upon completion of the site visit, the reviewers and the FTA regional office staff discussed preliminary findings with the recipient, subsequently presented and provided the findings formally at the exit conference, conducted virtually. The table below summarizes key review dates. Section V of this report lists the individuals participating in the site visit.

Process Date	Process
January 15, 2025	FTA transmittal of the Recipient Information Request (RIR)
February 28, 2025	Recipient Transmittal of RIR to Reviewers
March 10-31, 2025	FTA and Reviewers Scoping Meeting/Desk Review
May 27, 2025	Reviewer Transmittal of the Agenda Package
June 10, 2025	Site Visit: Entrance Conference
June 16, 2025	Site Visit: Exit Conference (virtual)
July 17, 2025	FTA Transmittal of the Draft Report
August 20, 2025	Final Report to be sent to the Recipient within 45 business days from the Site Visit: Exit Conference date

III. Recipient Description

1. Organization

SORTA is a public transit agency serving the Greater Cincinnati area. SORTA provides fixed-route bus service (Metro) and curb-to-curb paratransit service (Access) for people whose disabilities prevent them from riding Metro. SORTA is governed by a 13-member board, which consists of eight members appointed by the Hamilton County Board of Commissioners and five members appointed by the City of Cincinnati.

The SORTA Board appoints a Chief Executive Officer/General Manager who in turn is the appointing authority for approximately 1,200 employees including an executive staff and management staff. Approximately 900 employees are represented by the Amalgamated Transit Union, Local 627. The population of its service area is approximately 830,000. The Ohio-Kentucky-Indiana Regional Council of Governments (OKI) is responsible for the allocation and administration of Section 5310 funds.

SORTA provides public transportation services through two operating divisions, Metro and Access. SORTA provides bus service on 44 fixed routes which include both local service and commuter express service. SORTA provides Metro fixed-route service 24 hours a day, seven days a week. Access paratransit service is provided during the same days and hours of service as the fixed routes. SORTA also provides a mobility-on-demand service, MetroNow, in several areas not covered by fixed-route service. The base fare for fixed-route service is $2.00, with a reduced fare for senior citizens and disabled passengers of $1.00. The base paratransit fare is $4.00.

SORTA has three operation facilities in Cincinnati. Fixed-route bus services are operated from the Queensgate Facility on Banks Street and the Bond Hill Facility on Paddock Road, and Access paratransit service and MetroNow demand response services are operated from the Access Facility on Transpark Drive. The Government Square center in downtown Cincinnati serves as major destination and regional hub for the fixed-route service. Other facilities include the Silverton Eligibility Center, Northside Transit Center, and Glenway Crossing Transit Center.

2. Award and Project Activity

Below is a list of SORTA's open awards at the time of the review.

Award Number	Award Amount	Year Executed	Award Name
OH-2022-038	$2,692,000	2022	FHWA STBG Transfer to 5307 (OTP2) - APCs, Alternative Energy Strategy, Hybrid Batteries, and Fleet Communications Modernization
OH-2022-037	$19,079,158	2022	'20 CMAQ ('21 DERG), '22 5339-Bus and Bus Facilities Discretionary Funds (B), '19, '20, '21, and '22 5339-Bus and Bus Facilities Formula Funds (A), and '20 5311 to 5307 (OTP2) - Procurement and Management System Upgrades
OH-2024-009	$11,747,783	2024	FY2023 Section 5307 Prev. Maintenance, Paratransit Operations, and Security
OH-2024-023	$8,918,589	2024	Fixed-Route Bus & Paratransit Vehicle Purchases - CMAQ (DERG), STBG, and Section 5339a
OH-2024-022	$3,673,882	2024	Walnut Hills Transit Center, MetroNow Vehicles, and Transit Planning-related (AoPP and Flexed Fund Transfers)
OH-2024-004	$17,608,627	2024	Bus Purchases - CMAQ (FY 22 DERG), CMAQ (FY 23 OKI), and Sec. 5339(c) Low and No Emission
OH-2025-008	19,583,945	2025	Sections 5307, 5337, and STBG for Preventive Maintenance, Security, ADA Paratransit, Handheld Data Collection, Security One Badge Upgrade, Govt. Sq. TC Prev. Maintenance

SORTA received Supplemental Funds for operating assistance in award numbers OH-2021-048 and OH-2023-039. This is not the first Triennial Review where SORTA has received operating assistance from the FTA.

Projects Completed

In the past few years, SORTA completed the following noteworthy projects:

- SORTA indicated several projects have started or are on-going since the last Triennial Review. However, there have been no capital projects completed since the last review.

Ongoing Projects

SORTA is currently implementing the following noteworthy projects:

- Bus Rapid Transit (BRT), Small Starts – Project development underway for two corridors: Reading Rd. and Hamilton Ave.

- Bus Stop Enhancement Project - Improve 3,800+ bus stops with new signs, poles, shelters, and benches.
- Walnut Hills Transit Center – New transit center development.
- North College Hill Transit Center – New transit center development.
- Bond Hill Bus Garage – Modifications for alternative fuel infrastructure and expanding fleet needs.
- Queensgate Bus Garage Redevelopment (No FTA funding identified yet) – Needed for alternate fuel infrastructure and expanding fleet needs, such as potential future BRT.
- Glenway Crossing Transit Center Renovation (No FTA funding identified yet).
- Mobility on Demand (MetroNow) – Point to point on demand service for selected neighborhoods in Hamilton County. As of early 2025, two zones are operational with additional zones in the planning phases.
- Regional Paratransit Coordination Initiative – One Seat paratransit ride through potentially multiple transit agency territories.

Future Projects

SORTA plans to pursue the following noteworthy project in the next three to five years:

- Bus Rapid Transit – Future phases (in addition to the two currently being worked on).

IV. Results of the Review

1. Legal

Basic Requirement: The recipient must promptly notify the FTA of legal matters and additionally notify the USDOT Office of Inspector General (OIG) of any instances relating to false claims under the False Claims Act or fraud. Recipients must comply with restrictions on lobbying requirements.

Finding: No deficiency.

2. Financial Management and Capacity

Basic Requirement: The recipient must have financial policies and procedures; an organizational structure that defines, assigns, and delegates fiduciary authority; and financial management systems in place to manage, match, and charge only allowable costs to the award. The recipient must conduct required Single Audits, as required by 2 CFR part 200, and provide financial oversight of subrecipients.

Finding: No deficiency.

3. Technical Capacity – Award Management

Basic Requirement: The recipient must report progress of projects in awards to the FTA and close awards timely.

Finding: No deficiency.

4. Technical Capacity – Program Management & Subrecipient Oversight

Basic Requirement: States must document and follow a public involvement process for the development of the long-range statewide transportation plan and State Transportation Improvement Program (STIP). Designated recipients of Sections 5310, 5311, and 5339 funds must develop and submit a State Management/Program Management Plan to the FTA for approval. Recipients must enter into an agreement with each subrecipient, obtain required certifications from subrecipients, report in the Federal Funding Accountability and Transparency Act Subaward Reporting System (FSRS) on subawards, and ensure subrecipients comply with the terms of the award.

Finding: Not applicable. This section only applies to states and recipients with subrecipients.

5. Technical Capacity – Project Management

Basic Requirement: The recipient must implement the FTA-funded projects in accordance with the award application, the FTA Master Agreement, and applicable laws and regulations using sound management practices.

Finding: No deficiency.

6. Transit Asset Management

Basic Requirement: Recipients must comply with 49 CFR part 625 to ensure public transportation providers develop and implement transit asset management (TAM) plans.

Finding: No deficiency.

7. Satisfactory Continuing Control

Basic Requirement: The recipient must ensure that FTA-funded property will remain available and used for its originally authorized purpose throughout its useful life until disposition.

Finding: No deficiency.

8. Maintenance

Basic Requirement: Recipients must keep federally funded vehicles, equipment, and facilities in good operating condition. Recipients must keep Americans with Disabilities Act (ADA) accessibility features on all vehicles, equipment, and facilities in good operating order.

Finding: No deficiency.

9. Procurement

Basic Requirement: The non-federal entity must use its own documented procurement procedures which reflect applicable State, local, and tribal laws and regulations, and conform to applicable Federal law and the standards identified in 2 CFR Part 200. With regard to the procurement standards in 2 CFR Part 200, state recipients can use the state's overall policies and procedures, except that the state must comply with 2 CFR 200.321 (contracting with small and minority businesses (superseded by DOT's DBE regulation)), 200.322 (domestic preferences), 200.323 (procurement of recovered materials), and 200.327 (contract provisions). States also must comply with any requirement applicable to FTA recipients by reason other than a 2 CFR Part 200 procurement standard; for example, 49 U.S.C. 5325(a) requires recipients to conduct all procurement transactions in a manner that provides full and open competition, regardless of Part 200's allowance for states to use state procedures.

The reviewers examined documentation in the following sampled procurements:

Contract/ Product	Award Date	Amount	Method	Deficiencies
78-2023 128654 - 25-40' low-floor Gillig Buses	4/18/2023	$19,687,360	Joint Procurement	None
91-2022 134757 - 3 Access paratransit vans off Laketran contract	11/18/2022	$595,491	Piggyback	None
5536-2022 123663 - PASS Suite Solutions	5/17/2022	$571,491	Sole Source	P11-1
5559-2022 127638 - Camera system for 14 MOD vans	10/24/2022	$70,774	Request for Proposals (RFP)	P11-1

Finding: One (1) deficiency was found with the FTA requirements for Procurement.

Deficiency Description: **P11-1 Missing Clauses**

Recipients are required to include specific clauses in FTA-funded procurements. The FTA Master Agreement identifies certain clauses that apply to third-party contracts. 2 CFR 200.327 and Appendix II to 2 CFR Part 200 identify contract provisions for non-Federal contracts under a Federal award. FTA C. 4220.1F discusses Federal requirements that affect a recipient's acquisitions. The recipient is deficient if it did not include all applicable required clauses in the FTA-funded procurements that were reviewed.

Contract 5536-2022 123663 PASS Suite Solutions was missing seven required clauses:

- Termination for Cause and Convenience
- Clean Air Act and Water Pollution Act
- Byrd Anti Lobbying Amendment
- Notice to FTA and U.S. DOT Inspector General of Information related to Waste, Fraud, and Abuse
- Solid Waste Disposal Act
- Prohibition on Certain Telecommunications and Video Surveillance Service and Equipment
- Seatbelt Use and Distracted Driving

Contract 5559-2022 127638 Camera system for 14 MOD vans was missing four required clauses:

- Notice to FTA and U.S. DOT Inspector General of Information related to Waste, Fraud, and Abuse
- Solid Waste Disposal Act

- Prohibition on Certain Telecommunications and Video Surveillance Service and fixed Equipment
- Seatbelt Use and Distracted Driving.

Corrective Action and Schedule: By November 14, 2025, SORTA must submit in OTrak:

1. Revised procurement procedures that ensure review of the FTA Master Agreement and 2 CFR Part 200 annually to confirm the inclusion of all FTA-required third-party contract clauses through use of a clause checklist or other mechanism.
2. For the next procurement, submit documentation that the required process was implemented.

10. Disadvantaged Business Enterprise (DBE)

Basic Requirement: Recipients must comply with 49 CFR Part 26 to ensure nondiscrimination in the award and administration of USDOT-assisted contracts. Recipients also must create a level playing field on which DBEs can compete fairly for USDOT-assisted contracts.

Finding: One (1) deficiency was found with the FTA requirements for Disadvantaged Business Enterprise.

Deficiency Description: **DBE5-1: DBE uniform reports contain inaccuracies and/or are missing required information.**

In accordance with 49 CFR 26.37, recipients of FTA funds are expected to keep accurate data regarding contracts awarded and paid with FTA dollars and report on such per the instructions for completing the Uniform Report of DBE Awards or Commitments and Payments. The recipient is deficient if its reports do not include applicable FTA-funded contracting activity undertaken by itself and any subrecipients and it cannot demonstrate how these reports reconcile to procurement records.

Contract 5536-2022 123663 PASS Suite Solution for $571,491 was not included in the semi-annual Uniform Report of DBE Awards or Commitments and Payments. The contract was awarded on May 17, 2022, and was not included in the December 2022 report. The recipient indicated that this contract was not originally targeted for federal funding. However, once the decision was made to use federal funding, appropriate staff were not notified of the change in funding in order to facilitate inclusion of the award in the Uniform Report.

Corrective Action and Schedule: By November 14, 2025, SORTA must submit in OTrak:

1. Corrected December 2022 Uniform report.
2. Implemented procedures for correctly completing Uniform Reports of DBE Awards or Commitments and Payments, including contracts that originally were targeted for local funding but then received federal funding.

11. Title VI

Basic Requirement: The recipient must ensure that no person shall, on the grounds of race, color, or national origin, be excluded from participating in, or be denied the benefits of, or be subject to discrimination under any program or activity receiving Federal financial assistance without regard to whether specific projects or services are federally funded. The recipient must ensure that all transit services and related benefits are distributed in an equitable manner.

Finding: No deficiency.

12. Americans with Disabilities Act (ADA) – General

Basic Requirement: Titles II and III of the Americans with Disabilities Act of 1990 provide that no entity shall discriminate against an individual with a disability in connection with the provision of transportation service. The law sets forth specific requirements for vehicle and facility accessibility and the provision of service, including complementary paratransit service.

Finding: No deficiency.

13. ADA – Complementary Paratransit

Basic Requirement: Under 49 CFR 37.121(a), each public entity operating a fixed-route system shall provide paratransit or other special service to individuals with disabilities that is comparable to the level of service provided to individuals without disabilities who use the fixed-route system. “Comparability” is determined by 49 CFR 37.123-37.133. Requirements for complementary paratransit do not apply to commuter bus, commuter rail, or intercity rail systems.

Finding: No deficiency.

14. Equal Employment Opportunity (EEO)

Basic Requirement: The recipient must ensure that no person in the United States shall on the grounds of race, color, religion, national origin, sex, age or disability be excluded from participating in, or denied the benefits of, or be subject to discrimination in employment under any project, program or activity receiving Federal financial assistance under the Federal transit laws.

Finding: No deficiency.

15. School Bus

Basic Requirement: Recipients are prohibited from providing school bus service in competition with private school bus operators unless the service qualifies and is approved by the FTA

Administrator under an allowable exemption. Federally-funded equipment or facilities cannot be used to provide exclusive school bus service.

Finding: No deficiency.

16. Charter Bus

Basic Requirement: Recipients are prohibited from using the FTA-funded equipment and facilities to provide charter service that unfairly competes with private charter operators. Recipients may operate charter only when the service meets a specified exception defined in rule.

Finding: No deficiency.

17. Drug Free Workplace Act

Basic Requirement: Recipients are required to maintain a drug free workplace for all award-related employees; report any convictions occurring in the workplace timely; and have an ongoing drug free awareness program.

Finding: No deficiency.

18. Drug and Alcohol Program

Basic Requirement: Recipients receiving Section 5307, 5309, 5311, or 5339 funds that have safety-sensitive employees must have a drug and alcohol testing program in place for such employees.

Finding: No deficiency.

19. Section 5307 Program Requirements

Basic Requirement: The recipient must participate in the transportation planning process in accordance with Federal Transit Administration (FTA) requirements and the metropolitan and statewide planning regulations.

Recipients shall develop, publish, afford an opportunity for a public hearing on, and submit for approval, a program of projects (POP).

Recipients are expected to have a written, locally developed process for soliciting and considering public comment before raising a fare or carrying out a major transportation service reduction.

For fixed-route service supported with Section 5307 assistance, fares charged seniors, persons with disabilities or an individual presenting a Medicare card during off peak hours will not be more than one half the peak hour fares.

Finding: No deficiency.

20. Section 5310 Program Requirements

Basic Requirement: Recipients must expend Section 5310 funds on eligible projects that meet the specific needs of seniors and individuals with disabilities. Projects selected for funding must be included in a locally developed, coordinated public transit-human services transportation plan. Recipients must approve all subrecipient leases of Section 5310-funded vehicles. Leases of Section 5310-funded vehicles must include required terms and conditions. Either the recipient or subrecipient must hold the title to the leased vehicles.

Finding: This section only applies to recipients that receive Section 5310 funds directly from the FTA; therefore, the related requirements are not applicable.

21. Section 5311 Program Requirements

Basic Requirement: States must expend Section 5311 funds on eligible projects to support rural public transportation services and intercity bus transportation.

Finding: This section only applies to recipients that receive Section 5311 funds directly from FTA; therefore, the related requirements are not applicable.

22. Public Transportation Agency Safety Plan (PTASP)

Basic Requirement: Recipients must comply with the Public Transportation Agency Safety Plan (PTASP) regulation (49 CFR Part 673) to ensure public transportation providers develop and implement an Agency Safety Plan (ASP). The PTASP Final Rule published in the Federal Register April 11, 2024 became effective May 13, 2024. FTA expects transit agencies to address the regulatory changes in the new PTASP Final Rule in their next Agency Safety Plan (ASP) annual update.

FTA requires applicable recipients to certify that they have established an ASP that meets the requirements of the PTASP regulation and 49 U.S.C. 5329(d) as part of the annual Certifications and Assurances for FTA grants and cooperative agreements. FTA notes that per 49 U.S.C. 5307(c)(1)(L), this certification is a required condition of receiving section 5307 funding (though noncompliance can impact access to Section 5307 funding as well as other grant funds where 5307 requirements apply). FTA monitors these certifications in its Transit Award Management

System (TrAMS).

Finding: No deficiency.

23. Cybersecurity

Basic Requirement: Recipients that operate rail fixed guideway public transportation systems must certify compliance with the requirements for establishing a cybersecurity process under 49 U.S.C. § 5323(v), a new subsection added by the National Defense Authorization Act for Fiscal Year 2020, Pub. L. 116-92, § 7613 (Dec. 20, 2019).

Finding: This section only applies to recipients that operate rail fixed guideway public transportation systems; therefore, the related requirements are not applicable.

V. Attendees

Name	Title	Phone Number	E-mail Address
Southwest Ohio Regional Transit Authority (SORTA)			
Andy Aiello	CEO	513-614-7257	AAiello@go-metro.com
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FTA			
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VI. Appendices

Governing Directives

Procurement Clauses

Appendix II to Part 200—Contract Provisions for Non-Federal Entity Contracts Under Federal Awards

In addition to other provisions required by the Federal agency or non-Federal entity, all contracts made by the non-Federal entity under the Federal award must contain provisions covering the following, as applicable.

(B) All contracts in excess of $10,000 must address termination for cause and for convenience by the non-Federal entity including the manner by which it will be effected and the basis for settlement.

(G) Clean Air Act (42 U.S.C. 7401-7671q.) and the Federal Water Pollution Control Act (33 U.S.C. 1251-1387), as amended—Contracts and subgrants of amounts in excess of $150,000 must contain a provision that requires the non-Federal award to agree to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act (42 U.S.C. 7401-7671q) and the Federal Water Pollution Control Act as amended (33 U.S.C. 1251-1387). Violations must be reported to the Federal awarding agency and the Regional Office of the Environmental Protection Agency (EPA).

(I) Byrd Anti-Lobbying Amendment (31 U.S.C. 1352)—Contractors that apply or bid for an award exceeding $100,000 must file the required certification. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. 1352. Each tier must also disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Such disclosures are forwarded from tier to tier up to the non-Federal award.

(J) See §200.323 [Procurement of recovered materials—A non-Federal entity that is a state agency or agency of a political subdivision of a state and its contractors must comply with section 6002 of the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act. The requirements of Section 6002 include procuring only items designated in guidelines of the Environmental Protection Agency (EPA) at 40 CFR part 247 that contain the highest percentage of recovered materials practicable, consistent with maintaining a satisfactory level of competition, where the purchase price of the item exceeds $10,000 or the value of the quantity acquired by the preceding fiscal year exceeded $10,000; procuring solid waste management services in a manner that maximizes energy and resource recovery; and establishing an affirmative procurement program for procurement of recovered materials identified in the EPA guidelines.]

(K) See § 200.216. [§ 200.216 Prohibition on certain telecommunications and video surveillance services or equipment.

(a) Recipients and subrecipients are prohibited from obligating or expending loan or grant funds to:

(1) Procure or obtain;

(2) Extend or renew a contract to procure or obtain; or

(3) Enter into a contract (or extend or renew a contract) to procure or obtain equipment, services, or systems that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. As described in Public Law 115–232, section 889, covered telecommunications equipment is telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities).

(i) For the purpose of public safety, security of government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities).

(ii) Telecommunications or video surveillance services provided by such entities or using such equipment.

(iii) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of the National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

FTA Master Agreement (30) Section 39(b)

Notification to FTA; Flow Down Requirement. If a current or prospective legal matter that may affect the Federal Government emerges, the Recipient must promptly notify the FTA Chief Counsel and FTA Regional Counsel for the Region in which the Recipient is located. The Recipient must include a similar notification requirement in its Third Party Agreements and must require each Third Party Participant to include an equivalent provision in its subagreements at every tier, for any agreement that is a "covered transaction" according to 2 C.F.R. §§ 180.220 and 1200.220.

(1) The types of legal matters that require notification include, but are not limited to, a major dispute, breach, default, litigation, or naming the Federal Government as a party to litigation or a legal disagreement in any forum for any reason.

(2) Matters that may affect the Federal Government include, but are not limited to, the Federal Government's interests in the Award, the accompanying Underlying Agreement, and any Amendments thereto, or the Federal Government's administration or enforcement of federal laws, regulations, and requirements.

(3) Additional Notice to U.S. DOT Inspector General. The Recipient must promptly notify the U.S. DOT Inspector General in addition to the FTA Chief Counsel or Regional Counsel for the Region in which the Recipient is located, if the Recipient has knowledge of potential fraud, waste, or abuse occurring on a Project receiving assistance from FTA. The notification provision applies if a person has or may have submitted a false claim under the False Claims Act, 31 U.S.C. § 3729, et seq., or has or may have committed a criminal or civil violation of law pertaining to such matters as fraud, conflict of interest, bid rigging, misappropriation or embezzlement, bribery, gratuity, or similar misconduct involving federal assistance. This responsibility occurs whether the Project is subject to this Agreement or another agreement between the Recipient and FTA, or an agreement involving a principal, officer, employee, agent, or Third Party Participant of the Recipient. It also applies to subcontractors at any tier. Knowledge, as used in this paragraph, includes, but is not limited to, knowledge of a criminal or civil investigation by a Federal, state, or local law enforcement or other investigative agency, a criminal indictment or civil complaint, or probable cause that could support a criminal indictment, or any other credible information in the possession of the Recipient. In this paragraph, "promptly" means to refer information without delay and without change. This notification provision applies to all divisions of the Recipient, including divisions tasked with law enforcement or investigatory functions.

FTA Master Agreement (30) Section 34. Safe Operation of Motor Vehicles. (a) Seat Belt Use

The Recipient agrees to implement Executive Order No. 13043, "Increasing Seat Belt Use in the United States," April 16, 1997, 23 U.S.C. § 402 note, (62 Fed. Reg. 19217), by:
(1) Adopting and promoting on-the-job seat belt use policies and programs for its employees and other personnel that operate company-owned vehicles, company-rented vehicles, or personally operated vehicles; and
(2) Including a "Seat Belt Use" provision in each third party agreement related to the Award

FTA Master Agreement (30) Section 34. Safe Operation of Motor Vehicles. (b) Distracted Driving, Including Text Messaging While Driving.

The Recipient agrees to comply with:
(1) Executive Order No. 13513, "Federal Leadership on Reducing Text Messaging While Driving," October 1, 2009, 23 U.S.C. § 402 note, (74 Fed. Reg. 51225);
(2) U.S. DOT Order 3902.10, "Text Messaging While Driving," December 30, 2009; and
(3) The following U.S. DOT Special Provision pertaining to Distracted Driving:
(i) Safety. The Recipient agrees to adopt and enforce workplace safety policies to decrease crashes caused by distracted drivers, including policies to ban text messaging while using an electronic device supplied by an employer, and driving a vehicle the driver owns or rents, a vehicle Recipient owns, leases, or rents, a privately-owned vehicle when on official business in connection with the Award, or when performing any work for or on behalf of the Award;
(ii) Recipient Size. The Recipient agrees to conduct workplace safety initiatives in a manner commensurate with its size, such as establishing new rules and programs to prohibit text messaging while driving, re-evaluating the existing programs to prohibit text messaging while driving, providing education, awareness, and other outreach to employees about the safety risks associated with texting while driving; and

(iii) Extension of Provision. The Recipient agrees to include the preceding Special Provision of section 34(b)(3)(i) – (ii) of this Master Agreement in its third party agreements and encourage its Third Party Participants to comply with this Special Provision, and include this Special Provision in each third party subagreement at each tier supported with federal assistance.

Disadvantaged Business Enterprise

49 CFR 26.37

(c) You must effectively implement the following running tally mechanisms:

(1) With respect to achieving your overall goal, you must use a running tally that provides for a frequent comparison of cumulative DBE awards/commitments to DOT-assisted prime contract awards to determine whether your current implementation of contract goals is projected to be sufficient to meet your annual goal. This mechanism should inform your decisions to implement goals on contracts to be advertised according to your established contract goal-setting process.

(2) With respect to each DBE commitment, you must use a running tally that provides for a frequent comparison of payments made to each listed DBE relative to the progress of work, including payments for such work to the prime contractor to determine whether the contractor is on track with meeting its DBE commitment and whether any projected shortfall exists that requires the prime contractor's good faith efforts to address to meet the contract goal pursuant to § 26.53(g).

Instructions For Completing The Uniform Report of DBE Awards/Commitments And Payments

Recipients of Department of Transportation (DOT) funds are expected to keep accurate data regarding the contracting opportunities available to firms paid for with DOT dollars. Failure to submit contracting data relative to the DBE program will result in noncompliance with Part 26. All dollar values listed on this form should represent the DOT share attributable to the Operating Administration (OA): Federal Highway Administration (FHWA), Federal Aviation Administration (FAA) or Federal Transit Administration (FTA) to which this report will be submitted.